

The Morning Briefing

THE SUNDAY EDITION · COMPILED FOR MARCUS JOHNSON

WEEK'S LEAD STORY

Congress Clears Shutdown Threat, Punts Funding Fight Past Midterms — Then Goes Home

U.S. POLITICS

Stopgap Funding Bill Signed, House Cancels Two More Session Weeks

The House passed H.R. 6500, the Continuing Appropriations and Extensions Act, 2027, by a lopsided 370-48 margin early in the week, and the Senate followed with a 90-6 vote. President Trump signed the bill midweek, funding the federal government at current levels through December 11 and removing the immediate shutdown threat that had loomed over the end of the fiscal year on September 30.

The bipartisan margins reflect a shared incentive: neither party wanted a shutdown fight bleeding into the final stretch of midterm campaigning. But the deal is a pure punt — it resolves nothing about spending levels, only the calendar. Leadership then canceled the previously scheduled September 21 and September 28 session weeks, leaving the House with just a handful of voting days before members scatter to their districts for the rest of the month and all of October.

ANALYSIS

A CR through December 11 means this fight resurfaces in a lame-duck-adjacent window, right after the midterms decide who's negotiating it. Watch whether a shifted House or Senate majority hardens either side's position once electoral consequences are off the table.

Axios / CNN — axios.com/2026/09/01/house-government-shutdown-funding-bill-passage

Senate Grinds Through Judicial Confirmations in Pro Forma Sessions

With floor time scarce, the Senate has been advancing district-court nominations largely through brief pro forma sessions — this week taking up cloture on Matthew R. Byrne's nomination to the U.S. District Court for the Southern District of Ohio. It's a quiet but steady process: each confirmed judge is a lifetime appointment, and the pace has continued even as the chamber's public attention stays fixed on funding and the midterms.

Congress.gov — congress.gov/on-house-floor-today

SCOTUS & THE JUDICIARY

Tyler Robinson Case Cleared for Trial as Kirk Killing Nears One-Year Mark

A Utah judge ruled this week that the case against Tyler Robinson — charged with aggravated murder, felony discharge of a firearm, obstruction of justice, and witness tampering in the September 2025 killing of conservative activist Charlie Kirk — will proceed to trial, with the death penalty still on the table if he's convicted. Prosecutors point to a note Robinson allegedly left for his roommate and other interactions as evidence of a confession.

The ruling lands just before the first anniversary of Kirk's death on September 10, and outlets spent the week running retrospectives on how the shooting reshaped campus politics, security around public conservative figures, and the broader debate over political violence. The case itself now moves toward what will likely be one of the most closely watched criminal trials of the year.

NPR / Salt Lake Tribune — npr.org/2026/09/01/nx-s1-5950452

Shadow Docket Stays Busy on Routine Business; a Bigger Emergency Application Looms

The Court's emergency docket ran through a batch of stay and injunction denials this week — including in *Comer v. Tolan*, *Shekar v. Teledyne*, and a National Labor Relations Board dispute involving CEMEx — alongside a decision in *National Republican Congressional Committee v. Brown* on the FCC's "lowest unit charge" rules for candidate advertising. More consequential: the federal government filed a new emergency application with the Court, a reminder that the shadow docket has become the primary venue for fast-moving disputes over executive action, not the merits docket.

ANALYSIS

The volume of emergency applications from this administration continues a trend legal scholars have flagged for two years running — more consequential policy is being decided on thin emergency-docket reasoning than on fully briefed merits cases. Worth tracking who's filing, how fast the Court rules, and how much reasoning it gives.

SCOTUSblog — scotusblog.com

ISRAEL & THE MIDDLE EAST

Katz and Ben Gvir Push Gaza “Depopulation” as Official Policy

Defense Minister Israel Katz told a conference this week that removing Palestinians from Gaza is “the only solution,” saying Israel is prepared to do it “by sea, by air and by every way possible,” and claiming President Trump has only “frozen” — not cancelled — his support for the idea. Far-right National Security Minister Itamar Ben Gvir went further, unveiling a plan to remove the “vast majority” of Gaza's population through what he calls “voluntary emigration,” including a dedicated government ministry to run it.

Both officials are framing forced population transfer in the vocabulary of choice and security. “Voluntary emigration” under military occupation, with no functioning economy and a leveled housing stock, is not a neutral policy option; it's displacement with a marketing label. That the claim rests on Trump having merely “frozen” rather than rejected the idea is itself notable — it reads as an attempt to keep the option alive rhetorically while avoiding a public break with Washington.

ANALYSIS

Cui bono: a depopulated Gaza serves the settlement-expansion wing of Israel's governing coalition far more than it serves any stated security rationale. Watch whether “voluntary emigration” infrastructure (the new ministry) gets funded before any ceasefire violation actually forces the issue — that would suggest the policy predates the pretext.

Al Jazeera — aljazeera.com/news/2026/9/8/palestine-weekly-israeli-ministers-push-for-depopulation-of-gaza

Ceasefire Holds on Paper, Strains in Practice

Nearly a year into the October 2025 ceasefire, implementation is badly behind schedule. Only about 35 percent of the aid trucks allocated under the deal — roughly 66,600 of 189,000 — have actually entered Gaza. Israel has not conducted any further troop withdrawals since the initial October 10 pullback and is instead reportedly building fortifications along the ceasefire line. Reconstruction has barely started, with roughly 0.5 percent of rubble cleared.

Against that backdrop, Israeli strikes this week killed several people the IDF identified as Hamas operatives in Gaza City and Khan Younis, which Israel says were “systematic violations” of the ceasefire by the other side. Those characterizations come from the IDF itself and aren't independently verified. A separate strike on a vehicle southwest of Gaza City killed two and wounded thirteen, according to Palestinian medics.

ANALYSIS

A ceasefire where the occupying force keeps building fortifications instead of withdrawing, and where aid delivery runs at a third of the agreed pace, is a ceasefire in name more than substance. The “violation” framing for individual strikes deserves scrutiny given how much of the underlying deal Israel itself has left unmet.

Times of Israel / Haaretz — timesofisrael.com/liveblog-september-04-2026

Amnesty: Israel Escalating Annexation With Land Seizures Inside Area A

Amnesty International reported this week that Israel is stepping up annexation measures in the occupied West Bank, including unlawful land seizure orders that now reach into Area A — territory nominally under Palestinian Authority civil and security control since the Oslo Accords. Finance Minister Bezalel Smotrich, who oversees West Bank civil administration, has been explicit about the goal, describing the operating principle as “maximum territory with minimum Arabs.” The UN has separately described settler violence in the West Bank as at an “all-time high.”

ANALYSIS

Seizing land inside Area A isn't incremental settlement growth within the pre-agreed zones of contest — it's a direct breach of the territorial division Israel itself signed onto at Oslo. That distinction matters for anyone still treating West Bank policy as a slow-moving status quo rather than active annexation.

Amnesty International — amnesty.org/en/latest/news/2026/09/israel-opt-israel-steps-up-annexation-measures-with-unlawful-land-seizure-orders-in-the-occupied-west-bank

A Year After the Doha Strike, Qatar's Mediating Role Still Hasn't Recovered

This week marked roughly a year since Israel's September 2025 airstrike on Hamas leadership meeting in Doha — an attack that killed a Qatari security officer, drew rare public criticism from the White House at the time, and prompted Qatar to declare its mediation “not valid.” A year on, analysts note Hamas's top political leadership is still based in Doha, and Gulf states remain wary of a precedent in which Israel struck a U.S. security partner's capital without, by most accounts, meaningful advance warning to Washington.

The episode is a useful data point on U.S.-Israel interest divergence: the strike complicated an active U.S.-backed diplomatic track and briefly strained a Gulf relationship Washington depends on for basing and regional stability, for an operation that did not in fact eliminate its targets.

FDD / Washington Institute — fdd.org/analysis/analysis-analysis/2026/09/09/qatar-still-hosts-hamass-top-brass-one-year-after-they-were-targeted

New York Declaration's First Anniversary Finds Little on the Ground

A year after the UN General Assembly endorsed the New York Declaration on a two-state solution by a 142-10 vote — with the U.S. and Israel among the ten no votes — the diplomatic framework has produced little tangible change in Gaza or the West Bank. The gap between broad international consensus and the policy actually being pursued on the ground (depopulation planning in Gaza, land seizures in the West Bank) is widening rather than narrowing.

UN News — news.un.org/en/story/2025/09/1165835

FINANCIALS

Markets spent the week pricing in Wednesday's Fed decision against an inflation backdrop that refuses to fully cooperate: August CPI came in at 3.4% year-over-year with core CPI at roughly 2.5-3%, both a touch firmer than the disinflation path the Fed would prefer. Equities sold off through midweek — the S&P 500 broke a four-day losing streak only in the final sessions — while crude spiked nearly 10% on geopolitical supply concerns tied to ongoing Middle East tensions. That combination (sticky inflation, an energy shock, a still-live shutdown-adjacent political calendar) is exactly the setup that makes the September 16 FOMC meeting a genuine swing event rather than a formality; futures markets have been pricing real uncertainty about the outcome. The snapshot below reflects Friday's close, not a full week of data — treat the range positions and trend signals as directional, not final.

AAPL (Apple Inc.) — \$332.27, +1.75% today. *Near 52-week highs, momentum intact.* 52-wk range position: 89%. Analyst avg. target upside: +1.08%.

LMT (Lockheed Martin Corp) — \$512.77, -1.00% today. *Lower half of 52-week range; Street sees meaningful upside to target.* 52-wk range position: 36%. Analyst avg. target upside: +23.44%.

BLK (BlackRock Inc) — \$995.60, -2.09% today. *Trading near 52-week lows; Street sees meaningful upside to target.* 52-wk range position: 26%. Analyst avg. target upside: +24.76%.

XOM (Exxon Mobil Corp) — \$146.60, -2.67% today. *Upper half of 52-week range; Street sees meaningful upside to target.* 52-wk range position: 58%. Analyst avg. target upside: +17.46%.

BTC-USD (Bitcoin) — \$76,768, -0.65% today. *Consolidating.*

XAU (Gold (spot)) — \$4,348.00, +0.74% today. *Safe-haven bid building.*

MARKET PREDICTIONS & MOVES

No dominant cross-asset signal today — moves look idiosyncratic, not macro-driven.

Informational market read compiled 2026-09-13, not personalized financial advice.

RESEARCH & LONG READS

“Annexation: A Threat That Never Fades”

A new article in the *Journal of Conflict and Security Law* reassesses the doctrinal stability — and practical fragility — of the postwar international-law prohibition on forcible annexation. It walks through the taxonomy separating de jure annexation, de facto annexation, and belligerent occupation, and traces how the UN Charter system's non-recognition and non-assistance duties have (and haven't) actually constrained annexing states since 1945. Directly

relevant background for reading this week's West Bank land-seizure news as part of a longer pattern rather than an isolated event.

Oxford Academic (JCSL) — academic.oup.com/jcsl/advance-article/doi/10.1093/jcsl/krag001/8507299

“Supreme Court Abuse of the Shadow Docket Under Trump”

The Brennan Center's running analysis argues that the Roberts Court's emergency docket has shifted from a narrow safety valve into a primary mechanism for deciding

high-stakes disputes over executive power — often with minimal or no written reasoning, making it hard for lower courts and the public to know what legal rule actually governs. Useful framing for this week's shadow-docket

activity, and for the constitutional-law question of how much of the separation-of-powers balance is now being set outside the ordinary appellate process.

Brennan Center for Justice — brennancenter.org/our-work/analysis-opinion/supreme-court-abuse-shadow-docket-under-trump